

The purpose of this act is to extend fundamental protections against intentional injury, killing, and neglect to all domestic and captive animals within the State of Maine, while establishing a legally protected framework for non-lethal, highly regulated agricultural partnerships that maximize animal comfort and eliminate fear.

Amending Cruelty Laws, Restructuring Exemptions

Currently, **17 M.R.S. § 1031** (Cruelty to Animals) contains broad exemptions for "accepted agricultural practices." This initiative would repeal those blanket exemptions and replace them with a two-tiered system:

Absolute Prohibition on Slaughter: It shall be a Class D crime to intentionally, knowingly, or recklessly cause the death of any domestic or captive animal for the purpose of food, fiber, or byproduct consumption, or to transport any animal out of the state for such purposes.

Conditional Exemption for Non-Lethal Byproducts: The harvesting of usable animal byproducts (including dairy, eggs, and fiber/wool) is exempt from prosecution under cruelty and neglect statutes only if the facility meets the strict "Symbiotic Care Standards" detailed below.

The Symbiotic Care Regulatory Framework

To legally sell or utilize animal byproducts in Maine under this law, agricultural operations must transition from a production-first model to a sanctuary-first model.

THREE PILLARS OF SYMBIOTIC CARE		
1. MAXIMIZE COMFORT Species-specific pasture, space, and enrichment	2. MINIMIZE FEAR No forced breeding, gentle handling only	3. PERMANENT GUARANTEE Retirement & no-kill life sanctuary

1. Maximizing Comfort (Environment)

Zero-Confinement Mandate: Continuous tie-stall housing, battery cages, and gestation crates are completely banned. Animals must have continuous access to species-appropriate outdoor space, pasture, and shelter.

Environmental Enrichment: Facilities must provide bedding and structural environments that allow natural behaviors (e.g., dust baths for poultry, scratching posts and climbing structures for goats).

Stocking Density Limits: Legal limits on animal density must be re-indexed to ensure every animal has adequate room to run, herd, or isolate at will.

2. Minimizing Fear (Handling and Management)

Prohibition on Forcible Breeding: Mirroring IP28's stance on animal sexual assault, invasive artificial insemination and forced mechanical breeding are prohibited. Reproduction must happen naturally or via non-invasive, low-stress veterinary interventions.

Low-Stress Handling: The use of electric prods, physical striking, or fear-inducing herding techniques is classified as criminal animal abuse.

Early Mutilation Ban: Routine, unanesthetized surgical procedures—such as tail-docking, dehorning, debeaking, and castration without localized block and systemic analgesia—are banned.

3. The Non-Lethal Guarantee (Lifecycle)

The Retirement Mandate: Because animals cannot be killed when their production drops (e.g., spent hens or older dairy cows), owners must legally guarantee a retirement plan for the animal's natural lifespan.

The Offspring Protection: Offspring generated (such as dairy calves) inherit the exact same protections—they cannot be sold into the veal or beef pipeline.

Enforcement and the Humane Transition Fund

To ensure this shift doesn't simply collapse the local food supply, the initiative must mirror IP28's financial transition mechanisms:

The Maine Symbiotic Agriculture Registry: Farmers wishing to produce dairy, eggs, or fiber must register, undergo quarterly state inspections, and receive a "Maine Symbiotic Certified" label to legally market their goods.

Humane Transition Fund: Redirects state agricultural subsidies to provide infrastructure grants. These grants help traditional farmers refit barns into open pastures, implement advanced low-stress monitoring systems, and build out long-term animal retirement infrastructure.

Legal Garbage to Anticipate

Interstate Commerce Clause Challenges: While Maine can regulate how things are produced *within* its borders (similar to California's Proposition 12), banning the sale of out-of-state meat or non-certified dairy could face immediate federal constitutional challenges.

The "Spent Animal" Economic Reality: Because the cost of maintaining an animal through its natural geriatric life heavily outweighs its early-life byproduct revenue, the text must strongly defend the "Humane Transition Fund" to prevent the law from being challenged as an unconstitutional regulatory taking of agricultural property.

Enzo the Dog in Lodi, Rockland PD with the porcupines, the goslings being chased in fear for 20 minutes to be run over. Society has to change and I can't beat everyone's ass, so this.